

Executive Engineer, Urban Distribution Division, Munshi Puliya, Lucknow v. State of U.P. and Another

High Court of Judicature at Allahabad · Single Judge · 15 May 2025 · APPLICATION U/S 528 BNSS No. 428 of 2025 · Notice issued; Criminal Misc. Case No. 761 of 2025 stayed pending listing

HEADNOTE

Section 528 BNSS application by a distribution Executive Engineer to quash a Special Judge (Essential Commodities Act) miscellaneous case in which a private landowner sought shifting of a transformer installed in front of her plot. The applicant invoked paragraph 4.5 of the U.P. Electricity Supply Code, 2005 as the proper remedy and submitted that Sections 3 and 11 of the Essential Commodities Act, 1955 did not cover the complaint. The Court recorded a prima facie view that the trial court had entertained an application from a private person not covered by Section 11, on a subject not envisaged by Section 3, found that the matter required consideration, issued notice, and stayed the miscellaneous case till the next listing. Quashing was not decided, and Clause 4.5 was not construed.

FACTUAL SUMMARY

The Executive Engineer, Urban Distribution Division, Munshi Puliya, Lucknow, applied under Section 482 Cr.P.C. / Section 528 BNSS to quash orders dated 19 February 2025 and 27 March 2025 of the Additional District Judge-4 / Special Judge, Essential Commodities Act, Lucknow, and the entire proceedings of Criminal Misc. Case No. 761 of 2025 (Sirmati versus Executive Engineer). Opposite party no. 2, Sirmati, had on 18/19 February 2025 applied directly to that court seeking that a transformer installed in front of her plot be shifted, because it prevented construction. The trial court registered a miscellaneous case, issued notice to the Executive Engineer, and on 27 March 2025 directed him to submit an explanation within 15 days. Counsel submitted that paragraph 4.5 of the U.P. Electricity Supply Code, 2005 was the proper remedy, that Section 3 of the Essential Commodities Act, 1955 did not cover transformer-shifting, and that Section 11 of that Act barred cognizance on her application.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

interlocutory stay of a Special Judge (EC Act) transformer-shifting miscellaneous case

HOLDING

Prima facie the s. 528 BNSS application requires consideration. The Court recorded that the Special Judge had entertained a private landowner's application to shift a transformer from the front of her plot — a person not covered by Section 11 of the Essential Commodities Act, 1955, on a subject not envisaged by Section 3 of that Act. Notice issued to opposite party no. 2; Criminal Misc. Case No. 761 of 2025 stayed till the next listing (second week of July 2025). The quash was not decided, nor was paragraph 4.5 of the Supply Code construed.

¶ 1

FLAG Interlocutory listing order. Applicant invoked paragraph 4.5 of the U.P. Electricity Supply Code, 2005 as the proper remedy; the Court did not cite or apply that clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 19.02.2025 AND 27.03.2025 ORDERS AND CRIMINAL MISC. CASE NO. 761 OF 2025 ARE LIABLE TO BE QUASHED

Only notice, listing and an interim stay; no quashing. ¶ 1

NOT DECIDED — WHETHER PARAGRAPH 4.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS THE PROPER REMEDY FOR SHIFTING A TRANSFORMER, AND WHETHER SECTIONS 3 AND 11 OF THE ESSENTIAL COMMODITIES ACT, 1955 OUST THE SPECIAL JUDGE

Applicant's arguments. The Court recorded a prima facie view on ss. 3 and 11 but listed the matter for consideration and did not construe the Code. ¶ 1

SCJ-346 · Executive Engineer, Urban Distribution Division, Munshi Puliya, Lucknow v. State of U.P. and Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.